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LITIGATION

NEWSLETTER

July 2026

BULLDOZER JUSTICE: DUE PROCESS, PROPERTY AND THE CONSTITUTIONAL LIMITS OF STATE POWER.

Introduction

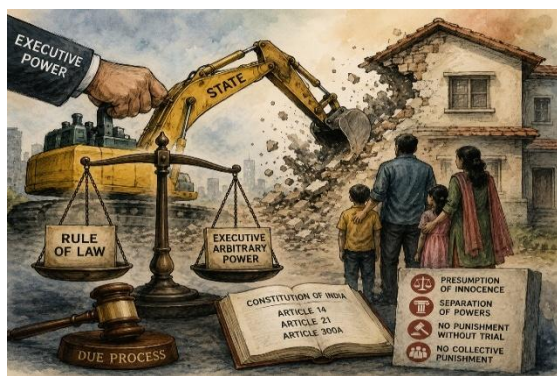
This month, the debate surrounding “bulldozer justice” resurfaced before the High Court of Judicature at Allahabad in “*Faimuddeen & Ors. v. State of U.P. & Ors. [2026 SCC OnLine All 22859]*”, concerning alleged coercive municipal action following registration of an FIR against a relative of the petitioners. The split verdict of the Division Bench highlighted the continuing constitutional tension between preventing demolition from becoming a punitive response to criminal accusations and preserving the State's legitimate power to act against unauthorised constructions.

In recent years, the expression “*bulldozer justice*” has entered legal discourse in India to describe instances where properties associated with persons accused of criminal offences are demolished by State authorities, raising concerns that demolition powers may be used as a form of punishment even before guilt is determined by a Court. While Municipal and Development Authorities possess statutory powers to remove illegal constructions and encroachments, the concern becomes constitutional when demolition appears to be linked to alleged criminal conduct rather than a *bona fide* exercise of such powers. This raises important questions of rule of law, due process, presumption of innocence, protection against arbitrary State action, right to shelter under Article 21, and protection of property under Article 300A.

Recognising these concerns, the Supreme Court in *Re: Directions in the Matter of Demolition of Structures [2024 INSC 866]* drew a clear distinction between lawful demolition and demolition used as an extra-legal form of

punishment. By laying down pan-India procedural safeguards governing demolition actions, the Court reinforced that executive authorities cannot assume the role of a Court and punish an individual merely on the basis of an accusation. The debate surrounding “bulldozer justice” therefore extends beyond property rights and raises a larger constitutional question on ‘*how far can the State exercise its powers without crossing the boundaries of law and due process*’?

Demolition as Punishment: Where Executive Power meets the Rule of Law



The power to demolish an unauthorised construction is a legitimate regulatory power available to Municipal and Development Authorities under applicable laws. However, the character of such action changes when demolition is undertaken not merely because a structure violates the law, but as a response to the alleged criminal conduct of its owner or occupant. In such circumstances, a regulatory measure risks becoming an extra-legal form of punishment without trial.

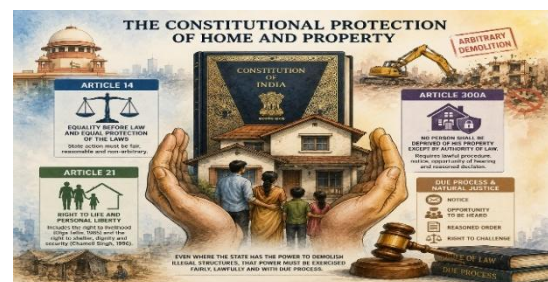
Demolition itself is not an extra-legal power. Various municipal, development and land laws expressly authorise authorities to remove unauthorised constructions and encroachments. For instance, Section 343 of the Delhi Municipal Corporation Act, 1957 empowers demolition of buildings or works constructed without or contrary to sanction, while Sections 26-A to 26-C and Section 27 of the Uttar Pradesh Urban Planning and Development Act, 1973 provide powers concerning

encroachments and demolition of unauthorised development. Similar powers operate under State municipal, town-planning, development and revenue laws. The constitutional concern therefore arises not from the existence of demolition powers, but from their purpose, timing and manner of exercise.

The constitutional difficulty lies in the executive assuming a role that belongs to the judiciary. An accusation of criminal wrongdoing does not establish guilt, and even a person accused of a serious offence remains entitled to the protection of law and the presumption of innocence. The Supreme Court in *Re: Directions in the Matter of Demolition of Structures [Supra]* made it clear that the executive cannot determine guilt and impose punishment by demolishing property. Such action would undermine the rule of law, separation of powers, and the basic requirement that punishment must follow a lawful judicial process.

The consequences may also extend beyond the accused. A house may belong to, or provide shelter to, parents, spouses, children, or other family members who have no connection with the alleged offence. Demolishing an entire home merely because one person is accused of wrongdoing can therefore operate as a form of collective punishment. The legality of demolition must consequently depend upon the status of the structure and compliance with the applicable law and not upon the criminal allegations against the persons associated with it.

The Constitutional Protection of Home and Property



The Constitution does not expressly recognise a fundamental right to property, but it places important limits on the State's power to deprive a person of their home or property. Article 14 protects against arbitrary State action, while Article 21 has been interpreted to protect not merely physical existence but the conditions necessary for a life of dignity. *In Olga Tellis v. Bombay Municipal Corporation [(1985) 3 SCC 545]*, the Supreme Court recognised the right to livelihood as part of the right to life, while in *Chameli Singh v. State of U.P. [(1996) 2 SCC 549]*, the Court explained that the right to shelter extends beyond having a roof over one's head and is connected with dignity, security and meaningful living. This understanding assumes particular significance where demolition of a home directly affects the shelter, livelihood and dignity of those residing in it.

At the same time, Article 300A provides that no person can be deprived of property except by authority of law. Although the right to property is no longer a fundamental right, State interference with property cannot therefore be arbitrary or unsupported by lawful procedure. In *Kolkata Municipal Corporation v. Bimal Kumar Shah [AIR 2024 SC 2819]*, the Supreme Court explained that Article 300A carries important procedural protections, including notice, an opportunity of hearing and a reasoned decision. The same constitutional approach was reinforced in *“Re: Directions in the Matter of Demolition of Structures [Supra]”*, where the Court recognised the importance of shelter and held that the State cannot demolish a person's home merely because an occupant is accused of an offence. Together, Articles 14, 21 and 300A ensure that even where the State possesses lawful demolition powers, their exercise must remain fair, non-arbitrary and consistent with due process.

The Supreme Court Draws the Line: The 2024 Pan-India Guidelines



In Re: Directions in the Matter of Demolition of Structures [Supra], the Supreme Court considered allegations that properties of persons accused of criminal offences were being demolished as a consequence of such accusations. The Court held that the executive cannot assume the role of the judiciary by determining guilt and using demolition as a form of punishment. Such action, when undertaken merely because a person is accused of an offence, was found to be inconsistent with the rule of law, separation of powers, presumption of innocence, public accountability and constitutional protection against arbitrary State action. The Court also recognised that demolition of a home may affect innocent family members and implicate the right to shelter and dignity.

To prevent misuse of demolition powers, the Supreme Court exercised its powers under **Article 142** and laid down uniform safeguards applicable across the country. **No demolition should take place without a prior show-cause notice, giving the owner or occupier the period prescribed under local law or 15 days from service, whichever is later, followed by an opportunity of personal hearing and a reasoned final order. The framework also requires digital documentation of notices and orders, an opportunity to remove the unauthorised portion or challenge the order before demolition is undertaken, and videography and reporting of the demolition proceedings.** These safeguards, however, do not extend to specified unauthorised structures in public places or cases where demolition has been ordered by a court.

Importantly, constitutional protection against arbitrary demolition does not legitimise illegal construction. In *Rajendra Kumar Barjatya v. U.P. Avas Evam Vikas Parishad* [2024 SCC OnLine SC 3767], the Supreme Court reiterated that constructions made in violation of applicable law cannot be permitted to remain merely because demolition has serious consequences. **The Court supplemented the earlier framework with measures aimed at preventing illegal construction itself, including greater scrutiny of deviations from sanctioned plans and compliance before occupation certificates are issued.** The emerging position is therefore clear: the State cannot use demolition to punish an accused, but neither can due process become a shield for genuinely unauthorised construction.

More recently, in *“Faimuddeen & Ors. [Supra]”*, a Division Bench of the Allahabad High Court agreed that demolition cannot operate as a retributive response to criminal allegations but differed on the extent of additional judicial safeguards required. While Justice Atul Sreedharan proposed no demolition of an accused’s dwelling until two years following registration of an FIR and one-year prior notice to the occupants, waivable only for “compelling urgency”, Justice Siddharth Nandan cautioned against unwarranted judicial activism that could restrict statutory municipal powers. The split verdict, referred to a third Judge, reflects the continuing challenge of preventing punitive demolition without protecting genuinely unauthorised construction.

When the State Demolishes Unlawfully: Accountability and Remedies

A further practical concern arises from the timing of demolition action. Where demolition is undertaken on weekends, court holidays or immediately after expiry of the prescribed period, an affected person may have little meaningful opportunity to seek urgent judicial

protection before the action becomes irreversible.

The Supreme Court's 2024 guidelines make it clear that unlawful demolition can carry consequences for the officials responsible. In *“Re: Directions in the Matter of Demolition of Structures [Supra]”* the Court held that violation of its directions may invite contempt proceedings and prosecution. Where demolition is carried out contrary to the prescribed safeguards, the responsible officers may also be made liable for restoration of the demolished property at their personal cost and payment of damages. The judgment therefore ensures that demolition powers remain subject not only to due process, but also to individual accountability where those safeguards are disregarded.

This principle was reinforced in *Zulfikar Haider v. State of Uttar Pradesh* [2025 SCC OnLine 766], where the Supreme Court found the demolition of residential properties without adequate notice and opportunity of hearing to be unlawful and directed compensation of Rs. 10 lakh to each affected owner. Reaffirming that the right to shelter forms an integral part of Article 21, the Court demonstrated that arbitrary demolition can result in meaningful constitutional remedies. Compensation, restoration, judicial review and personal responsibility of officials therefore operate as important safeguards against misuse of State demolition powers.

After the Guidelines: Has “Bulldozer Justice” Actually Ended?



The Supreme Court's 2024 judgment created a nationwide framework against arbitrary

demolitions, but subsequent proceedings show that the issue has not disappeared. Allegations of demolition contrary to the prescribed safeguards have continued to reach constitutional courts, shifting the focus from the absence of legal standards to their effective implementation. Significantly, proceedings connected with *In Re: Directions in the Matter of Demolition of Structures* continued before the Supreme Court into 2026, including applications concerning alleged non-compliance with the judgment.

The position in 2026 therefore reflects an important transition: the law now clearly prohibits demolition as a substitute for punishment, while preserving the State's authority to act against genuine illegal constructions and encroachments in accordance with law. Recent proceedings also show an increasing role for the High Courts in examining alleged violations of the Supreme Court's safeguards. The continuing challenge is therefore not simply defining the constitutional limits of demolition powers, but ensuring that notice, hearing, lawful purpose and accountability operate consistently on the ground.

The Road Ahead – From Executive Action to Constitutional Compliance

- Strict compliance with due process: Demolition should follow statutory procedure and the Supreme Court's safeguards, including proper notice, meaningful hearing and a reasoned order.
- Transparent and traceable decision-making: Notices, inspection reports, hearing records, final orders and demolition proceedings should be properly documented so that the basis of State action can be independently verified.
- Clear separation between enforcement and punishment: Municipal powers should be exercised only to address genuine violations of planning or municipal laws

and should never become a response to alleged criminal conduct.

- Effective accountability of public officials: Where demolition is undertaken arbitrarily or contrary to binding safeguards, responsibility should be fixed upon the officials concerned, including appropriate compensation and other consequences recognised by the Supreme Court.
- Consistency in implementation: The challenge after the 2024 judgment is ensuring that the safeguards are followed uniformly by local and State authorities across the country rather than requiring affected persons to approach constitutional courts after demolition has already occurred.
- Protection without legitimising illegality: Constitutional safeguards should not prevent authorities from acting against genuine illegal constructions. The objective is to ensure that lawful enforcement remains lawful in its purpose, procedure and execution.
- Prior judicial intimation in sensitive cases: Where a proposed demolition arises in circumstances involving serious public controversy, communal or religious sensitivity, or immediately follows allegations of criminal wrongdoing, a mechanism may be considered requiring prior intimation to the jurisdictional judicial authority before demolition is executed.

Key takeaway

“A home is more than property—it is closely connected with shelter, dignity and livelihood. Where State action threatens that home, constitutional protection requires that power be exercised through law, fairness and due process, irrespective of the allegations against its occupants.”

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